

WISCONSIN OWNER-BUILDER PERMIT KIT

Septic first · Then the permit · Then eight kinds of inspection

Project Address: _____

Town / Village / City: _____

County: _____

Who Enforces the UDC: _____

Owner-Builder: _____

Sanitary Permit Date: _____

Your town, your county, or a private state-registered agency. Read WI.1 before you guess.

Every Wisconsin statute, threshold, and requirement in this kit
is cited on the page it appears on — verified September 2026.

BUILD YOUR HOUSE

build-your-house.com

First Edition — 2026

How to Use This Kit

Five working documents, from “who is going to inspect this?” to the final inspection that lets you move in.

Wisconsin is the opposite of the states where owner-builders usually get into trouble. There is **no gap** here. One code — the Uniform Dwelling Code — binds every new one- and two-family dwelling in the state, and if your town has not taken up enforcement, the statute hands the job to the department rather than leaving it undone. You will get a permit and you will get inspections. The only open question is *who does them*, and there are exactly four possible answers.

What catches people out in Wisconsin is not the building permit. It is the **order**. On an unsewered parcel the county sanitary permit has to be in hand before the municipality may lawfully issue your building permit — that is a statute, not a local habit — and the septic side is the one part of the job a Wisconsin homeowner is **not allowed to do themselves**. So the first phone call on a rural Wisconsin build is not to the building inspector. It is to the county.

The second thing that catches people out is that the trades are four different rules with four different tests, and two of them are worded in a way that does not obviously reach a house nobody lives in yet. This kit prints all four side by side, in the legislature's own words, and tells you which question to put to your inspector before you pick up a tool.

WHAT IS IN THE KIT

The five documents

	Document	What it does for you
WI.1	Owner-Builder Exemption Walkthrough	The one-sentence exemption that lets you pull your own permit, and then the four trades — which are four separate rules. Read this first.
WI.2	Permit Application Checklist	What to gather, in the order Wisconsin makes you gather it: sanitary permit, then plans and site plan, then the uniform permit. Plus every code edition in force — including the electrical code that changed this month.
WI.3	Inspection Sequence	Every inspection the code names, the three clocks that let you keep working when the inspector does not show, and a log.
WI.4	Where to File Directory	How to find which of the four enforcement models covers your parcel, plus the county offices, the shoreland rules, and a page to write down every office you confirmed.
WI.5	Forms & Documents Index	Each document you will meet: what it is, when, and from where.

HOW TO USE IT

- **Start with WI.1.** Its first section tells you which of the four enforcement models covers your parcel, and its second tells you what you may do with your own hands. Nothing else sequences correctly until you know both.
- **If you are not on a sewer, call the county next.** The soil evaluation and the sanitary permit are the longest pole on a rural Wisconsin build, and by statute the building permit cannot issue until they are done.
- **Work WI.2 with a pen.** Wisconsin's plan submittal is short and its site plan requirements are specific — and the state forbids your municipality from making you have the plans stamped by an architect or engineer on an ordinary house.
- **Keep WI.3 on the job.** Two of its numbers are worth money: after you call for an inspection you may keep building at the end of the second business day, and you may occupy at the end of the fifth.

How these facts were checked — and what this is not

Every Wisconsin claim here was read against its primary source in September 2026 — the Statutes and the Administrative Code at docs.legis.wisconsin.gov, and the Department of Safety and Professional Services' own pages — and is cited where it appears. Where the answer genuinely depends on your municipality's ordinance, the kit says so and gives you a line to write what you confirmed. Not legal advice.

THE FOUR ANSWERS TO “WHO INSPECTS MY HOUSE?”

Every parcel in Wisconsin falls under one of these. Find yours before you do anything else; WI.4 shows you how.

Four enforcement models, and only four

	Model	What it means for you
1.	Your city, village or town enforces, with its own certified inspectors	The common case in cities and larger villages. You file at the municipal building department
2.	Your municipality enforces, but contracts the inspections out	Very common in smaller municipalities. You still file with the municipality; a private agency or a shared inspector does the visits
3.	Your town asked the county to do it	Available to a town, village or city of 2,500 or fewer people that passed a resolution. The county enforces
4.	Nobody local took it up, so the state has jurisdiction	You buy the permit from a private registered UDC inspection agency — and you are then locked to that same agency for every inspection on the job

Models 1 and 2 are the four enforcement methods a municipality must declare to the department under s. SPS 320.06(1)(b)1. to 4. Model 3 is Wis. Stat. s. 101.651(2m)(a) and (3)(a). Model 4 is s. 101.651(3)(b), under which the department “shall provide inspection services and shall enforce this subchapter throughout” the

municipality, with the permit obtained from a registered UDC inspection agency under s. SPS 320.08(1) and the same agency retained for inspections under s. SPS 320.08(2). Larger municipalities that do not inspect are covered by s. 101.65(2), which requires them to contract with the department for the services they do not perform.

The sentence that reorders a rural Wisconsin build

*“No county, city, town or village may issue a building permit for construction of any structure requiring connection to a private on-site wastewater treatment system unless a private on-site wastewater treatment system satisfying all applicable regulations already exists to serve the proposed structure **or all permits necessary to install a private on-site wastewater treatment system have been obtained.**”* (Wis. Stat. s. 145.195(1))

If you are not connecting to a municipal sewer, the county sanitary permit comes **first**. The code says it again from the building side: a uniform building permit “may not be issued unless conformance with s. SPS 383.25(2) has first been determined” (s. SPS 320.09(9)(c)).

Everything cited in this kit is free to read at docs.legis.wisconsin.gov, and the site takes a citation directly as a URL. For a statute — a **Wis. Stat.** section such as 101.65 — open docs.legis.wisconsin.gov/statutes/statutes/101 and find the section in the chapter. For a rule — a **Wis. Admin. Code** chapter such as SPS 321 or NR 812 — open docs.legis.wisconsin.gov/code/admin_code and pick the agency: **SPS** is Safety and Professional Services, which writes the Uniform Dwelling Code and the septic code, and **NR** is Natural Resources, which writes the well code and shoreland zoning. **One habit worth keeping when you check a number:** every chapter page prints its register date at the foot, in the form “Register month year No. nnn”. That date, not the year in the chapter title, tells you how current the text on your screen is. All text here was read at that source, September 2026.